

BEFORE THE HON'BLE JUDGE, FAMILY COURT AT SAKET, NEW DELHI

HMA Petition No. 123 of 2025

Mrs. Priya Sharma,
W/o Mr. Rajat Sharma,
Aged about 32 years,
Residing at Mayur Vihar,
New Delhi - 110091.....*Petitioner*

VERSUS

Mr. Rajat Sharma,
S/o Mr. Ramesh Sharma,
Aged about 35 years,
Residing at Lajpat Nagar,
New Delhi - 110024.....*Respondent*

**DIVORCE PETITION UNDER SECTION 13(1)(ia) OF THE HINDU MARRIAGE ACT,
1955 FOR DISSOLUTION OF MARRIAGE ON THE GROUND OF CRUELTY**

MOST RESPECTFULLY SHOWETH:

1. That the marriage between the Petitioner and the Respondent was solemnized on 15th February 2018 at New Delhi as per Hindu rites and customs. The said marriage was duly registered under the provisions of the *Hindu Marriage Act, 1955*. After marriage, the parties resided together at the Respondent's matrimonial home situated at Lajpat Nagar, New Delhi.
2. That the Petitioner and the Respondent last resided together at the aforesaid matrimonial home until January 2023, after that the Petitioner was compelled to leave that home due to continuous acts of cruelty and harassment by the Respondent.
3. That there are no children born out of the said wedlock.

GROUND FOR DIVORCE:

4. The present petition is being filed under Section 13(1)(ia) of the *Hindu Marriage Act, 1955*, on the ground that the Respondent has treated the Petitioner with cruelty, both mental and physical and thereby causing her immense suffering, humiliation and fear for her safety and well-being.

NARRATION OF INCIDENTS OF CRUELTY:

5. That the Respondent soon after the marriage, developed the habit of excessive drinking and returned home in an intoxicated state frequently. On several occasions he verbally abused the Petitioner, calling her with absurd names and questioning her character without any provocation.
6. That in March 2019, during a family gathering, the Respondent under the influence of alcohol had publicly humiliated the Petitioner by shouting obscene words and accusing her

of disrespecting his parents, causing her mental agony and embarrassment in front of all the relatives.

7. That in September 2020, the Respondent physically assaulted the Petitioner after she objected to his continuous drinking habits. She had suffered bruises on her arms and had to seek medical assistance for the same. Despite this, she refrained from taking any legal action against the Respondent in the hope that he would mend his behaviour.
8. That in December 2021, the Respondent locked the Petitioner out of the house late at night following an argument. The Petitioner was forced to spend the night at a neighbour's residence, which caused her deep emotional distress.
9. That in November 2022, the Respondent destroyed the Petitioner's personal belongings, including her mobile phone and clothes in a fit of rage. He repeatedly threatened her with fatal consequences if she ever thought of leaving him or informing her family.
10. That the aforementioned conduct of the Respondent amounts to cruelty within the meaning of Section 13(1)(ia) of the *Hindu Marriage Act, 1955*. The Petitioner has suffered continuous physical assault, verbal abuse, humiliation and emotional trauma, which has made it impossible for her to continue living with the Respondent.

SEPARATION AND NON-COHABITATION:

11. That the Petitioner was compelled to leave the matrimonial home in January 2023 due to the unbearable cruelty inflicted upon her by the Respondent. Since then, both the parties have been living separately and have not resumed cohabitation.
12. That all efforts at reconciliation by the Petitioner's family and well-wishers have failed, as the Respondent has neither shown remorse nor taken any steps towards resolving the matrimonial discord.

PRAYER:

In light of the facts and circumstances stated hereinabove, the Petitioner most respectfully prays that this Hon'ble Court may kindly be pleased to:

- a) **Pass a decree of divorce** under Section 13(1)(ia) of the *Hindu Marriage Act, 1955*, thereby dissolving the marriage between the Petitioner and the Respondent solemnized on 15th February 2018 at New Delhi;
- b) **Grant such other and further reliefs** as this Hon'ble Court may deem fit and proper in the best interest of justice.

VERIFICATION:

I, **Mrs. Priya Sharma**, the Petitioner above named, do hereby verify that the contents of the above petition are true and correct to the best my knowledge and belief. Nothing has been concealed therein. Verified at **New Delhi** on this **17th day of October, 2025**.

Alshan Husain Shah, Legal Intern,
AAR Attorney Alliance Advocates LLP

Petitioner
Mrs. Priya Sharma